

COMMITTEE ON FEDERALISM AND FAMILY LAW
SENATE AMENDMENTS TO H.B. 2908
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 41, chapter 7, article 1, Arizona Revised
3 Statutes, is amended by adding section 41-1108, to read:

4 41-1108. Constitutional convention; state delegates;
5 violation; classification; oath; definitions

6 A. ANY APPROVED AMENDMENT TO THE UNITED STATES CONSTITUTION SHALL
7 BE RATIFIED BY A BILL PASSED BY THE LEGISLATURE AND APPROVED BY THE
8 GOVERNOR.

9 B. A PERSON IN THIS STATE WHO IS A FAITHLESS CONSTITUTIONAL
10 CONVENTION DELEGATE IS GUILTY OF A CLASS 2 FELONY AND IS SUBJECT TO A
11 CIVIL PENALTY OF AT LEAST \$5,000. A FAITHLESS CONSTITUTIONAL CONVENTION
12 DELEGATE SHALL BE IMMEDIATELY ~~[RECALLED]~~ [DISQUALIFIED] FROM THE
13 DELEGATION. [THE PRESIDENT OF THE SENATE AND THE SPEAKER OF THE HOUSE OF
14 REPRESENTATIVES SHALL DETERMINE WHEN A FAITHLESS CONSTITUTIONAL CONVENTION
15 DELEGATE IS DEEMED DISQUALIFIED.]

16 C. ANY DELEGATE OF THIS STATE SHALL TAKE THE FOLLOWING OATH OF
17 OFFICE BEFORE ACCEPTING THE DELEGATE'S APPOINTMENT:

18 I, _____, DO SOLEMNLY SWEAR OR AFFIRM THAT TO THE BEST
19 OF MY ABILITIES, I WILL, AS A DELEGATE TO A CONVENTION FOR
20 PROPOSING AN AMENDMENT TO THE UNITED STATES CONSTITUTION,
21 UPHOLD THE CONSTITUTION AND LAWS OF THE UNITED STATES AND THE
22 STATE OF ARIZONA.

23 I WILL NOT VOTE TO ALLOW CONSIDERATION OF OR TO APPROVE
24 ANY AMENDMENT PROPOSED FOR RATIFICATION TO THE UNITED STATES
25 CONSTITUTION THAT IS UNRELATED TO THE SPECIFIED SUBJECT OR
26 SUBJECTS OF THE APPROVED CALL OF THE CONVENTION FROM CONGRESS
27 AND FROM NOT LESS THAN TWO-THIRDS OF THE STATES THAT SUBMITTED
28 APPLICATIONS. I WILL ALSO ABIDE BY ANY OTHER INSTRUCTIONS
29 FROM THE LEGISLATURE OF THE STATE OF ARIZONA IF THE

1 INSTRUCTIONS ARE NOT CONTRARY TO THE SUBJECT MATTER THAT WAS
2 SPECIFIED BY CONGRESS AND NOT LESS THAN TWO-THIRDS OF THE
3 STATES.

4 I ACKNOWLEDGE THAT ANY VIOLATION OF THIS OATH SHALL
5 RESULT IN BEING IMMEDIATELY RECALLED BY THE LEGISLATURE OF THE
6 STATE OF ARIZONA OR ITS AUTHORIZED COMMITTEE, SUBJECT TO CIVIL
7 PENALTY OF AT LEAST \$5,000 AND GUILTY OF A CLASS 2 FELONY.

8 D. A DELEGATE WHO IS AWARE OF ANY VIOLATION OF THE OATH OR ANY
9 OTHER VIOLATION BY A DELEGATE SHALL REPORT THE VIOLATION TO THE ATTORNEY
10 GENERAL, THE PRESIDENT OF THE SENATE AND THE SPEAKER OF THE HOUSE OF
11 REPRESENTATIVES.

12 E. FOR THE PURPOSES OF THIS SECTION:

13 1. "DELEGATE" MEANS A MEMBER OF A DELEGATION OR AN ALTERNATE TO THE
14 DELEGATION TO A CONSTITUTIONAL CONVENTION WHO HAS BEEN ELECTED, APPOINTED
15 OR SELECTED FOR THAT POSITION.

16 2. "FAITHLESS CONSTITUTIONAL CONVENTION DELEGATE" MEANS A PERSON
17 WHO IS A DELEGATE TO A CONSTITUTIONAL CONVENTION AND WHO KNOWINGLY CASTS A
18 VOTE OR TAKES ANY OFFICIAL ACTION IN FURTHERANCE OF SUBJECT MATTER THAT
19 DIFFERS FROM THE LEGAL CONVENTION SCOPE.

20 3. "LEGAL CONVENTION SCOPE" MEANS THE SUBJECT MATTER THAT HAS BEEN
21 SPECIFIED IN THE APPLICATION FOR A CONVENTION OF STATES BY NOT LESS THAN
22 TWO-THIRDS OF THE STATES IN THEIR CALLS FOR A CONVENTION OF THE STATES, IN
23 THE CALL FOR THE CONVENTION OF STATES FROM CONGRESS AND BY THE LEGISLATURE
24 OF THIS STATE IN ITS APPLICATION FOR A CONVENTION OF STATES.

25 Sec. 2. Severability

26 If a provision of this act or its application to any person or
27 circumstance is held invalid, the invalidity does not affect other
28 provisions or applications of the act that can be given effect without the
29 invalid provision or application, and to this end the provisions of this
30 act are severable.

31 Enroll and engross to conform

32 Amend title to conform

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